Non-Judicial Settlement Agreement
Flanagan Pine Branch Trust

Pursuant to 18-B M.R.S. Section 111 (Maine Uniform Trust Code)

Trust: Flanagan Pine Branch Trust
Settlor: Dorothy E. Flanagan (deceased), Ellsworth, Maine
Date of Trust Agreement: 2005
Property: 321 Phillips Way, Ellsworth, ME 04605 (Branch Lake)
Deed Reference: TR 31 PG 07 PC 10
Trustees: John Michael Flanagan and Christopher Joseph Flanagan, Successor Co-Trustees
Date of Agreement: _____, 2026

I. Parties

This Non-Judicial Settlement Agreement ("Agreement") is entered into by and among all interested persons of the Flanagan Pine Branch Trust, as defined by 18-B M.R.S. Section 111:

Current Beneficiaries (Settlor's Living Children):

1. Mary Jean Foss
2. John Michael Flanagan
3. Jane Elizabeth Birckhead
4. Elizabeth Mary Young
5. Christopher Joseph Flanagan

Successor Beneficiaries and Forfeiting Party:

6. Jennifer Anne Yommer (daughter of Mary Jean Foss)
7. Martha Jane Foss (daughter of Mary Jean Foss)
8. Joseph Morgan Birckhead (son of Jane Elizabeth Birckhead)
9. Diana Elizabeth Birckhead (daughter of Jane Elizabeth Birckhead; forfeiting party)

Affected Persons (Granted Use Rights Under This Agreement):

10. Edward Joseph Young IV (son of Elizabeth Mary Young)
11. John Nelson Young (son of Elizabeth Mary Young)

Successor Co-Trustees:

12. John Michael Flanagan
13. Christopher Joseph Flanagan

II. Authority

This Agreement is executed pursuant to 18-B M.R.S. Section 111 of the Maine Uniform Trust Code, which provides that interested persons may enter into a binding non-judicial settlement agreement with respect to any matter involving a trust.

18-B M.R.S. Section 111(4) provides that a non-judicial settlement agreement is valid only to the extent it does not violate a material purpose of the trust and includes terms and conditions that could be properly approved by the court under the Maine Uniform Trust Code.

The parties represent that the terms of this Agreement are consistent with the material purposes of the Trust, which include:

a. Benefiting the Settlor's children, grandchildren, and more remote descendants, in that order of priority (Recitals of Trust Agreement).

b. Preserving the Camp Property for the use and enjoyment of the Settlor's descendants (Article V, Section 5.1).

c. Protecting the Trust property from alienation to outside parties (Article VII).

All modifications herein keep the beneficial interests within the Settlor's family line and further the Settlor's expressed wishes for continued family use of the Camp Property.

III. Purpose

The parties enter into this Agreement to formalize the following modifications to the administration and beneficial interests of the Trust:

A. The forfeiture of Elizabeth Mary Young's beneficial interest and the grant of a limited use right to her and her children.

B. The transfer of Mary Jean Foss's beneficial interest to her children.

C. The transfer of Jane Elizabeth Birckhead's beneficial interest to Joseph Morgan Birckhead, with Diana Elizabeth Birckhead's forfeiture.

D. The clarification of spousal rights upon the death of a beneficiary.

E. The establishment of a simplified mechanism for future trustee transitions that can be completed without retaining an attorney.

Each of these matters is set forth in detail below and in the attached Exhibits.

IV. Elizabeth Mary Young Interest Forfeiture and Limited Use Right

Before the beneficiary vote that elected the Successor Co-Trustees, Elizabeth Mary Young signed Exhibit A to confirm her acceptance of the special one-week Limited Use Right Agreement. That pre-election acceptance did not make her forfeiture effective or remove her right to vote in the trustee election. By executing this Non-Judicial Settlement Agreement after the election and acceptance of the Successor Co-Trustees, the parties now approve, ratify, and make effective the forfeiture, redistribution, release, and limited use right stated in Exhibit A.

A. Forfeiture

Elizabeth Mary Young voluntarily forfeits her entire beneficial interest in the Flanagan Pine Branch Trust, including all rights to income distributions under Article IV, all rights to use of the Camp Property under Article V, and all voting rights as a beneficiary.

This forfeiture extends to her heirs, Edward Joseph Young IV and John Nelson Young, who likewise forfeit any current or future beneficial interest they may hold or claim in the Trust.

B. Consideration

In consideration for this forfeiture and in exchange for being released from all financial obligations under Article 5.3 of the Trust Agreement (including assessments for utilities, real property taxes, insurance, repairs, maintenance, and capital improvements), Elizabeth Mary Young, Edward Joseph Young IV, and John Nelson Young are granted the following:

1. One (1) aggregate week of summer use of the Camp Property per calendar year, shared among the three of them, only while the Trust owns the Camp Property and the limited use right remains in effect. One week means seven (7) consecutive days. Weeks typically begin on Sunday and end on Saturday, but an alternate seven-day period may be requested and will be accommodated if available and if it does not conflict with or materially disrupt the overall annual schedule or adjacent scheduled weeks.

2. This use right is personal, non-transferable, and non-perpetual. It may not be assigned, sold, leased, gifted, conveyed, inherited, or exercised by any other person and creates no ownership, beneficial, leasehold, easement, lien, voting, or purchaser right.

3. Requested dates may be submitted during the preliminary scheduling period in the last week of January, and the annual schedule shall be finalized by the end of March. If the named users do not participate or submit dates during the preliminary period, they may request their week later without penalty, subject to availability and coordination with the overall schedule. Before finalization, choices are limited to weeks not already requested; after finalization, choices are limited to weeks not already scheduled. An unused week does not carry over, and no make-up week is owed.

4. The Trustees will consider equitable distribution of prime vacation weeks over time, and final scheduling remains in their discretion.

5. Elizabeth Mary Young, Edward Joseph Young IV, and John Nelson Young may not, under any

circumstances, rent, lease, sublease, license, advertise, assign, exchange, barter, or accept money, compensation, or other consideration for use of the assigned week, whether or not any of them is present. At least one of them must be present during any permitted use of the assigned week by guests.

6. Elizabeth Mary Young, Edward Joseph Young IV, John Nelson Young, and their guests use the Camp Property entirely at their own risk and assume all risks of accident, injury, illness, death, and loss of or damage to personal property. To the fullest extent permitted by law, the Trust, its Trustees, beneficiaries, agents, and representatives shall not be liable for such harm. The named users are responsible for informing and supervising their guests and any minors in their party. Nothing in this provision waives liability that applicable law does not permit to be waived.

7. No service fee or use fee will be charged for exercising the limited use right. The named users remain responsible for the reasonable cost of repairing or replacing Trust property, amenities, or equipment damaged by them or their guests beyond ordinary wear and tear.

8. THIS LIMITED USE RIGHT IS NOT PERPETUAL. It automatically and permanently terminates if the Trust is dissolved, terminated, or otherwise ceases to exist, or if the Trust sells, transfers, conveys, or otherwise ceases to own the Camp Property. No compensation, replacement property, substitute week, carryover week, or right against a purchaser or future owner is owed. It also terminates as to each holder upon death and, in all events, upon the deaths of both Edward Joseph Young IV and John Nelson Young, as detailed in Exhibit A.

C. No Claim to Proceeds

This forfeiture includes any and all current and future claims to:

Sale proceeds, equity, or distributions should the Property be sold in whole or in part under Article 5.5 or otherwise.

Any right to purchase the Camp Property under Article 5.6.

Any right to participate in voting for or against the sale of the Camp Property under Article 5.5.

Any right to nominate or vote for the removal of a Trustee under Article 10.2.

D. Redistribution

The beneficial interest formerly held by Elizabeth Mary Young is hereby redistributed equally to the four (4) remaining branches:

Mary Jean Foss branch: additional 5%
John Michael Flanagan: additional 5%
Jane Elizabeth Birckhead branch: additional 5%
Christopher Joseph Flanagan: additional 5%

Following this redistribution, each of the four remaining branches holds a 25% beneficial interest in the Trust.

E. Re-Entry Provision

If Elizabeth Mary Young, Edward Joseph Young IV, or John Nelson Young desire to return to being active beneficiaries of the Trust in the future, the then-active beneficiaries shall vote on the terms and conditions of such re-entry. Those terms may include repayment or catch-up payment of expenses, taxes, insurance, maintenance, improvements, or other Trust costs previously paid by the active beneficiaries. Approval shall require a majority vote of the active beneficiaries at that time.

The complete terms of this forfeiture and use right are set forth in the attached Exhibit A.

V. Transfer of Beneficial Interest -- Mary Jean Foss

Mary Jean Foss hereby transfers her entire 25% beneficial interest in the Flanagan Pine Branch Trust to her children in equal shares:

Jennifer Anne Yommer: 12.5% beneficial interest
Martha Jane Foss: 12.5% beneficial interest

Effective on the date of this Agreement:

1. Jennifer Anne Yommer and Martha Jane Foss assume all rights of their mother's beneficial interest, including the right to use the Camp Property, the right to vote as beneficiaries, and the right to receive income distributions under Article IV.

2. Jennifer Anne Yommer and Martha Jane Foss assume all obligations associated with this interest, including the obligation to pay their proportionate share of expenses under Article 5.3.

3. Mary Jean Foss relinquishes her beneficial interest, voting rights, and financial obligations under the Trust.

The complete terms of this transfer are set forth in the attached Exhibit B.

VI. Transfer of Beneficial Interest -- Jane Elizabeth Birckhead

Jane Elizabeth Birckhead hereby transfers her entire 25% beneficial interest in the Flanagan Pine Branch Trust to Joseph Morgan Birckhead, after Diana Elizabeth Birckhead's voluntary forfeiture of the 12.5% beneficial interest she would otherwise have received.

Joseph Morgan Birckhead: 25.0% beneficial interest
Diana Elizabeth Birckhead: 0.0% beneficial interest

Effective on the date of this Agreement:

1. Joseph Morgan Birckhead assumes all rights of his mother's beneficial interest, including the right to use the Camp Property, the right to vote as beneficiaries, and the right to receive income distributions under Article IV.

2. Joseph Morgan Birckhead assumes all obligations associated with this interest, including the obligation to pay his proportionate share of expenses under Article 5.3.

3. Jane Elizabeth Birckhead relinquishes her beneficial interest, voting rights, and financial obligations under the Trust.

4. Diana Elizabeth Birckhead forfeits and relinquishes any current beneficial interest, voting rights, use rights, purchase rights, sale-proceeds claims, and financial obligations she may hold or claim through Jane Elizabeth Birckhead's branch, subject only to the re-entry provision stated in Exhibit C.

The complete terms of this transfer are set forth in the attached Exhibit C.

VII. Clarification of Spousal Rights

The Trust Agreement does not specifically address the rights and responsibilities of the spouses of beneficiaries upon the death or incapacity of a beneficiary. Article 5.7 references a deceased beneficiary's "heirs" but does not define the term or clarify spousal succession.

The parties agree to the following clarification:

A. Spousal Inheritance

In the event of the death of an active beneficiary who has no living heirs or no adult heirs at the time of death, the surviving spouse of that beneficiary shall inherit:

1. The deceased beneficiary's beneficial interest in the Trust.

2. All rights associated with that interest, including the right to use the Camp Property and the right to vote as a beneficiary.

3. All obligations associated with that interest, including the obligation to pay the proportionate share of expenses under Article 5.3.

B. Continuation of Family Line

Upon the death of the surviving spouse, or if the surviving spouse chooses to no longer participate in the Trust, the beneficial interest shall pass to the children (descendants) of the original beneficiary.

C. No Heirs or Descendants

If the original beneficiary has no children or descendants, and the surviving spouse has died or is no longer participating, the beneficial interest shall be redistributed equally among the remaining active beneficiaries of the Trust.

D. Interaction with Article 5.7

This clarification is intended to supplement, not replace, Article 5.7. The right of first refusal provisions in Article 5.7 (offering a deceased beneficiary's interest first to the Trust, then to remaining beneficiaries) remain in effect. This clarification addresses only the succession of interests that are not purchased under Article 5.7.

The complete terms of this clarification are set forth in the attached Exhibit D.

VIII. Simplified Future Trustee Succession

To minimize future legal costs and administrative delays, the parties agree to establish a simplified, repeatable process for any future change in trustees. This mechanism allows the active beneficiaries to elect successor trustees, execute the required documents, and record the change at the Hancock County Registry of Deeds without retaining an attorney.

The process requires:

1. A written Resignation of Trustee (or documentation of vacancy due to death or incapacity) delivered to all active beneficiaries.

2. A majority vote of the active beneficiaries to elect the successor trustee(s), documented in a written Record of Beneficiary Vote with signatures.

3. A written acceptance by the successor trustee(s).

4. The execution and recording of a new Affidavit of Successor Trustee in the Hancock County Registry of Deeds pursuant to 18-B M.R.S. Section 1013.

5. Per Article 12.1 of the Trust Agreement, a copy of such instruments certified by a notary public shall be deemed sufficient proof of authority for all third parties (banks, insurance companies, and government agencies).

The current Co-Trustees shall maintain template documents from this transition (Phases 1-3) to serve as a self-service toolkit for future transitions.

This mechanism also establishes a process for the removal of a trustee by majority vote of the active beneficiaries, with a 30-day response period for the trustee whose removal is sought.

The complete terms of this mechanism are set forth in the attached Exhibit E.

IX. Updated Ownership Structure

Following the execution of this Agreement, the beneficial interests in the Flanagan Pine Branch Trust shall be as follows:

John Michael Flanagan	25.0%
Christopher Joseph Flanagan	25.0%
Jennifer Anne Yommer	12.5%
Martha Jane Foss	12.5%
Joseph Morgan Birckhead	25.0%

Total	100.0%

Elizabeth Mary Young, Edward Joseph Young IV, and John Nelson Young:
Lifetime use right of one (1) aggregate week per summer.
No beneficial interest. No voting rights. No financial obligations.

Mary Jean Foss: No beneficial interest (transferred to children).
Jane Elizabeth Birckhead: No beneficial interest (transferred to children).

X. Active Beneficiaries and Voting

Following this Agreement, the active beneficiaries entitled to vote on Trust matters shall be:

1. John Michael Flanagan (25%)
2. Christopher Joseph Flanagan (25%)
3. Jennifer Anne Yommer (12.5%)
4. Martha Jane Foss (12.5%)
5. Joseph Morgan Birckhead (25%)

A majority of the active beneficiaries shall be required for any vote under the Trust Agreement unless the Trust Agreement specifies a different threshold.

XI. Governing Law

This Agreement shall be governed by the laws of the State of Maine, including the Maine Uniform Trust Code (18-B M.R.S.), consistent with Article XIII of the Trust Agreement.

XII. Severability

If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

XIII. Entire Agreement

This Agreement, together with its attached Exhibits, constitutes the complete agreement of the parties with respect to the matters addressed herein. This Agreement supplements the Flanagan Pine Branch Trust Agreement dated 2005 and does not replace or revoke it except as specifically modified herein.

XIV. Exhibits

The following Exhibits are attached to and incorporated into this Agreement:

Exhibit A: Elizabeth Mary Young Forfeiture and Limited Use Right Agreement
Exhibit B: Transfer of Beneficial Interest -- Mary Jean Foss to
Jennifer Anne Yommer and Martha Jane Foss
Exhibit C: Transfer of Beneficial Interest -- Jane Elizabeth Birckhead to
Joseph Morgan Birckhead, with Diana Elizabeth Birckhead forfeiture
Exhibit D: Spousal Rights Clarification
Exhibit E: Simplified Future Trustee Succession Mechanism

XV. Counterparts and Separate Acknowledgments

This Agreement may be executed in counterparts. Each counterpart shall be deemed an original, and all counterparts together shall constitute one agreement. Signers may execute separate signature pages. Electronic signatures may be used to the extent permitted by applicable law and agreed by the parties; however, each signer must separately complete a valid notarial acknowledgment, whether in person or through a legally authorized remote online notarization process. Each completed acknowledgment shall identify this Agreement and be attached to the fully assembled Agreement.

XVI. Signatures

Each undersigned party acknowledges that they have read and understand the terms of this Agreement, that they have had the opportunity to consult with independent legal counsel, and that they execute this Agreement voluntarily.

Current Beneficiaries:

Mary Jean Foss
Signature: _____
Date: _____
Address: _____

John Michael Flanagan
Signature: _____
Date: _____
Address: _____

Jane Elizabeth Birckhead
Signature: _____
Date: _____
Address: _____

Elizabeth Mary Young
Signature: _____
Date: _____
Address: _____

Christopher Joseph Flanagan
Signature: _____
Date: _____
Address: _____

Successor Beneficiaries and Forfeiting Party:

Jennifer Anne Yommer
Signature: _____
Date: _____
Address: _____

Martha Jane Foss
Signature: _____
Date: _____
Address: _____

Joseph Morgan Birckhead
Signature: _____
Date: _____
Address: _____

Diana Elizabeth Birckhead
Signature: _____
Date: _____
Address: _____

Affected Persons:

Edward Joseph Young IV
Signature: _____
Date: _____
Address: _____

John Nelson Young
Signature: _____
Date: _____
Address: _____

Successor Co-Trustees:

John Michael Flanagan, Successor Co-Trustee
Signature: _____
Date: _____

Christopher Joseph Flanagan, Successor Co-Trustee
Signature: _____
Date: _____

Individual Notary Acknowledgment -- Complete One for Each Signer

Document: Non-Judicial Settlement Agreement concerning the Flanagan Pine Branch Trust

State of _____
County of _____

This record was acknowledged before me on _____.
Date

Name of individual signer: _____

Capacity, if applicable: _____

Party represented, if applicable: _____

Signature of notarial officer: _____

Stamp or printed name: _____

Title of office: _____

My commission expires: _____

[Notarial stamp or seal]

Instruction: Reproduce and attach one completed acknowledgment for each signer. A notarial officer may use a different certificate form that complies with the law governing that notarial act.